

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) on 05/09/2022 filed two complaints with the Spanish Agency for Data Protection directed against the users of the social network "Twitter" mentioned in the URLs indicated in said complaints. The reasons on which these complaints are based are as follows: "Publication of a private video in which I appear without my consent. The video has gone viral, and I have not given permission for either the editing of the video or its distribution. They were independent takes for a work purpose, not for publication on social networks without my consent, as I am not the one who distributed the video. This fact was reported on Twitter, and a response was received without any measures being taken."

In the first of the complaints received, it is noted that the video was published on the social network "Twitter" on 02/09/2022 by the user "****USER.1". The video consists of an edit of successive takes in which the complainant looks at the camera and comments on how many glasses of wine and alcohol he/she is drinking throughout a night, showing the consequent evolution that the intake of alcohol produces in his/her state.

Through the second complaint, the complainant "adds" documentation to the previous complaint. According to the complainant, "it consists of more videos and photographic edits similar to the one published by the defendant in this file (***USER.1). In this case, other users of the social network Twitter have used the same video or images from that video without my consent. The description of the facts is the same as that sent in previous complaints." The complaint details the URLs leading to the reported publications (22 videos and 2 images).

Along with the complaints, the following documentation is provided, among others:

- Screenshot corresponding to the profile of the user "Twitter" "****USER.1". It states the date "2 Sept.", the text "****TEXT.1" and an image of the video in question that corresponds to a photo of the complainant. It states that the video has a duration of 38 seconds and has had "1.7 M views".
- Screenshots corresponding to the profiles of users of "Twitter" who disseminated the video or images. In most of them, the dates of 02, 03, or 04/09/2022 are noted; texts such as "(...)"; etc.; and an image of the video in question that corresponds to a photo of the complainant. It states the duration of the video (38 seconds) and the number of views in each case (ranging from 30 to 443.8 thousand views).

SECOND: On 05/09/2022, in accordance with Article 65 of the LOPDGDD, the first of the complaints mentioned in Background First was admitted for processing. The Admission Agreement was notified to the complainant on the same date.

THIRD: On 06/09/2022, two new complaints from the complainant were received at the Agency. The complaints are directed against new users of "Twitter", "Instagram", and "YouTube", who also disseminated the video in question with comments similar to those mentioned previously, which are added to those included in the previous complaints, as well as against the responsible parties and users of the websites indicated, where the video in question was also inserted.

Among these last ones, there is a user of the website "****URL.1", identified as "****USER.2", who published the video in question on 03/09/2022, accessible at the URL "****URL.2", taken from the Twitter user "****USER.1".

The General Subdirectorate of Data Inspection accessed the thread generated by the user "****USER.2" with the title "****TITLE.1", verifying that, on the same date of 03/09/2022, said video was also published on the website "****URL.1" by other users ("****USER.3" and "****USER.4").

The General Subdirectorate of Data Inspection accessed the thread generated by the user "****USER.2" with the title "****TITLE.1", verifying that, on the same date of 03/09/2022, other users of the website "****URL.1" made comments regarding the repeated video.

FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary

investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1. The Inspection Services report that the website “***URL.1” is a non-profit forum (there is no fee for users or advertising) focused on various hobbies such as video games, cinema, literature, etc., in which the content is generated by the users themselves.

2. On 08/09/2022, information was requested from the Public Business Entity XXXXX (NETWORKS) regarding the entity responsible for the domain “***URL.1”.

NETWORKS responds that the holder is B.B.B., with an address at ***ADDRESS.1, with the email address “***EMAIL.1” and phone number ***PHONE.1.

According to the information provided, the contact person for administrative, technical, and 3/15

Billing is C.C.C., located at ***ADDRESS.1.

3. On 03/10/2022, information was requested from the entity Orange Espagne, S.A.U. regarding the ownership of the line ***PHONE.1. According to the information provided by this entity on 19/10/2022, the line belongs to D.D.D., residing at ***ADDRESS.3.

4. In the context of the preliminary investigation proceedings, on 21/10/2022, the AEPD issued an “Agreement for the adoption of a provisional measure” ordering D.D.D. to remove the content subject to the complaint posted on the website “***URL.1”, accessible through the URL “***URL.2” (video about “***LABEL.1” from the user “***USER.2”). In this agreement, which was notified on 10/11/2022, the following was expressly stated:

“1. Require D.D.D. (***URL.1) to remove the aforementioned content related to the complainant from the web addresses from which it is accessible, within a maximum period of 5 calendar days, avoiding, to the extent that the state of technology allows, the re-uploading or re-loading of exact copies or replicas by the same or other users.

2. Require D.D.D. (***URL.1) to ensure that the removal or modification of the content is carried out in such a way that it prevents third parties from accessing and disposing of the original, but guarantees its preservation for the purpose of safeguarding evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed.

3. Require D.D.D. (***URL.1) to inform this Spanish Agency for Data Protection about the execution of the measure within a maximum period of 5 calendar days.”

5. By requests dated 03/10, 17/11, and 21/11/2022, information was requested from the managers of “Wespec”, the hosting and domain provider, regarding the ownership of the email address “***EMAIL.1”, identifying data and contact information of the domain “pacot.es”, and the ownership and billing address of this domain.

This entity responded on 25/11/2022 as follows:

- The email address “***EMAIL.1” does not belong to the client. It was used to anonymize the client's email address and prevent them from receiving unwanted emails.
- The identifying data and contact information of the owner of the domain “***URL.1” registered in their systems:
 - Name: B.B.B.
 - Surname: B.B.B.
 - Company: “***COMPANY.1”
 - Email: ***EMAIL.2
 - Postal address: ***ADDRESS.1
 - Phone: ***PHONE.1

According to the aforementioned entity, the above data was provided by “E.E.E.”.

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- Owner and billing address of the domain “***URL.1”:
- Name: E.E.E.
- Surname: E.E.E.
- Company: ***COMPANY.2
- Email: ***EMAIL.3
- Postal address: ***ADDRESS.4
- Phone: ***PHONE.2

6. On 07/12/2022, E.E.E. (responsible for the website “***URL.1”) was requested to remove the content published at the URL “***URL.2” and provide information about the entity managing the website “***URL.1”.

A response was received on 21/12/2022, indicating that the “thread” on the platform with the URL: ***URL.2) has been deleted (understood as the initial message and all responses to it) on the same day the letter was received (21/12/2022) at 13:15 (GMT).

It states that the website only retains the strictly necessary information for the proper functioning of the website, that it does not store information, personal data, or photographs of individuals, registered or third parties, and that the possibility of uploading such files to the server is prohibited.

Regarding the photographs and videos mentioned in the request, it clarifies that they originate from another website (***URL.3) and that it is the users of “***URL.1” who have placed links to that content. To clearly indicate that this content does not originate from “***URL.1”, but from other websites, it is framed in a manner that indicates which platform it is from (the users who have published that image on “***URL.3” are indicated and linked in “***URL.1”).

If the content of those links is removed at the source, it no longer appears on “pacot.es”.

7. On 11/01/2023, the Inspection Services verified that the content accessible through the URL “***URL.2” has been removed. On the same date, it was verified that the page “***URL.1” was not available.

8. On 16/01/2023, in order to determine the authorship of the publications, information was requested from E.E.E. regarding the IP address from which the user “***USER.2” published the claimed content on 03/09/2022, at 13:39 and 19:13 hours, as well as the identifying registration data of this profile. The same information was requested regarding two other users who participated in the same thread related to the video subject to the proceedings.

On 28/01/2023, a response was received indicating that the website does not store any personal data, beyond the IP address and an email address. For the consulted case, it provides the IP address ***IP.1 and the email address “EMAIL.3”. The same information is provided regarding the other two users for whom inquiries were made (IP address and email address).

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It also adds that “the website does not record the IP address of each individual message for logistical and data protection reasons, but does record the last one from which the user accessed it,” which corresponds to the one provided by the cited user.

Subsequently, a request was made for the details of the date and time recorded in their systems corresponding to the previously reported IP address assignment.

In the response letter, dated 13/02/2023, E.E.E. provided the IP addresses assigned to the consulted users on the dates 28/01/2023, at 16:27:43 (Spain time), and 13/02/2023, at 01:48:22 (Spain time). In relation to the user “***USUARIO.2,” the following details were provided:

. The IP address ***IP.1 assigned to the profile “***USUARIO.2” corresponds to the date 28/01/2023, at 16:27:43 (Spain time).

. The IP address of “***USUARIO.2” on the date 13/02/2023, at 01:48:22 (Spain time) was ***IP.2.

9. In response to the request made by the Inspection Services, Telefónica de España, S.A.U. provided this Agency, on 14/02/2023, with the identifying data and address of the holders of the IP address

assignments indicated, on the specified dates and times:

. On the date of 28/01/2023, between 16:00:00 and 17:00:00 hours, the holder of the IP ***IP.1 is F.F.F., with NIF ***NIF.1 and address at ***DIRECCIÓN.5.

. On the date of 13/02/2023, between 01:00:00 and 02:00:00 hours, the holder of the IP ***IP.2 is G.G.G., with NIF ***NIF.2 and address at street ***DIRECCIÓN.6.

Furthermore, Telefónica de España, S.A.U. provided different identities for each of the IP addresses indicated by E.E.E. in relation to another user of the website (the name, address, and DNI of the person to whom the IP corresponding to 28/01/2023 was assigned do not match those of the person to whom the IP associated with the same user on 13/02/2023 was assigned).

10. On 09/03/2023, identifying data (name, surname, and NIF) and address of the person with user "****USUARIO.2" on the website "****URL.1" who used their internet connection on 28/01/2023, between 16:00 and 17:00 hours, and on 13/02/2023, between 01:00 and 02:00 hours, respectively, were requested from F.F.F. and G.G.G. Although the respective requests were notified on 03/04/2023 and 24/03/2023, no written response has been received by this Agency.

11. Finally, in order to clarify how the video made its way to social media after its recording, on two occasions the acting inspection requested the complainant to identify the author of the recording. These information requests were notified on 28/03/2023 and 13/06/2023, but no response was received.

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In the Preliminary Investigation Report, the Inspection Services of the AEPD highlight that the video in question went viral after its publication on 02/09/2022 on Twitter by the user "****USUARIO.1" and that, due to this wide dissemination, it can be found on dozens of sites and was easily locatable with tags such as "****ETIQUETA.1" or "****ETIQUETA.2". According to the Inspection Services, this is a replica of the videos that went viral on social media since 2021 regarding the matter "****ASUNTO.1", which show the evolution of the protagonist after consuming several alcoholic drinks, for which dozens of result pages can be found on the search engine "Google" using the indicated terms.

FIFTH: On 25/07/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against F.F.F. (hereinafter the claimed party), for the alleged infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

In the opening agreement, it was determined that the sanction that could correspond, without prejudice to what results from the instruction, would be 2,000 euros (two thousand euros) for each of the indicated infringements.

SIXTH: The postal notification of the initiation agreement has been attempted twice, resulting in "absent." The shipment was finally returned by the Postal Service with the indication "Surplus (not collected at the office)."

Thereafter, in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), it has been published in the BOE.

After the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the claimed party.

SEVENTH: On November 30, 2023, the instructor of the procedure agreed to request from F.F.F., with NIF ***NIF.1, and G.G.G., with NIF ***NIF.2, the identifying data (name, surname, and NIF) and address of the person with the username "****USUARIO.1" on the website "****URL.1" who used their internet connection on 28/01/2023, between 16:00 and 17:00 hours, and on 13/02/2023, between 01:00 and 02:00 hours, respectively, with a response to such request required within a maximum period of 30 days.

The communication addressed to G.G.G. was notified by postal means on 11/12/2023.

Regarding F.F.F., it is recorded as absent from delivery as of 13/12/2023. The Postal Service made

two attempts at notification and left a notice in the recipient's mailbox. The shipment was ultimately returned with the indication "Surplus (not collected at the office)."

EIGHTH: On 02/01/2024, G.G.G. reported the following:

"We request information on the identity of the person who connected to the page '***URL.1' with the username '***USUARIO.1' on 28-01-2023 from 16 to 17 hours and on 13-02-23 from 01 to 02. We do not know the identity of that person; we do not know if our network has been hacked."

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wifi, we can only say that it was not from this address nor by any family member."

NINTH: On January 22, 2024, a resolution proposal was formulated, proposing that the Director of the Spanish Agency for Data Protection impose a fine of €2,000 (two thousand euros) on F.F.F., with NIF ***NIF.1, for having infringed the provisions of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

TENTH: Upon notification of the aforementioned resolution proposal, a written response was received from the accused party in which the following was stated:

"First.- That he denies his participation in the facts for which this sanctioning procedure has been initiated and is unaware of the identity of the person who may be behind the user "****USUARIO.2" or "****USUARIO.2". He also has no knowledge of whether that user connected to the page "****URL.1" on the dates 28-01-2023 and 13-02-2023, and whether they could have done so by fraudulently accessing his WIFI network. Therefore, neither he nor anyone in his family environment has been involved in the facts attributed to him and thus he does not deserve the sanctioning reproach that is being demanded.

Second.- That there is a clear lack of motivation in the initiated sanctioning procedure that places the administrated party in a clear state of defenselessness against the administration, as his participation in the facts consisting of the dissemination of a viral video that was subsequently removed has not been demonstrated, with the Spanish Agency for Data Protection itself acknowledging that it has not been able to ascertain who used the website ***URL.1 to publish the video subject to this sanctioning procedure and, moreover, it states that after a thorough study of the documents in this file, there are two possible users, meaning that there is not even certainty. Therefore, the lack of motivation, combined with the lack of respect for the principle of presumption of innocence enshrined in the administrative sphere in Article 53.2 b) of Law 39/2015 on Common Administrative Procedure of Public Administrations (presumption of non-existence of administrative responsibility until proven otherwise), means that the present resolution proposal should be annulled."

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On 05/09/2022, A.A.A. filed a complaint with the AEPD against a user of the social network "Twitter" for the publication, on 02/09/2022, of a video without his consent. The video consists of a montage of successive shots in which the complainant looks at the camera and comments on how many glasses of wine and alcohol he is drinking throughout a night, showing the consequent evolution that alcohol consumption produces in his state. The image of the complainant was clearly visible in this recording, being recognizable by third parties. This video went viral after its publication on 02/09/2022 on Twitter. Due to this wide

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dissemination, could be found on dozens of sites and easily located with a search engine using tags such as "****LABEL.1" or "****LABEL.2".

SECOND: On 06/09/2022, the claimant submitted two new complaints to the AEPD against new users of “Twitter”, “Instagram”, and “Youtube”, who also disseminated the video mentioned in the First Proven Fact, as well as against several responsible parties and users of websites where the video in question was also embedded.

Among these, there is a user of the website “pacot.es”, identified as “***USER.2”, who published the video in question on 03/09/2022, accessible at the URL “***URL.2”. This user started a thread on the website “***URL.1” with the title “***TITLE.1”.

The publication of the video on “***URL.1” is made by placing a link to the social network “Twitter” where the video was originally published by a user of this social network.

THIRD: The AEPD Inspection Services verified that the website “***URL.1” is a non-profit forum (there is no fee for users or advertising) focused on various hobbies such as video games, cinema, literature, etc., where the content is generated by the users themselves.

FOURTH: On 08/09/2022, information was requested from the Public Business Entity Red.es (REDES) regarding the entity responsible for the domain “***URL.1”. REDES reported that the holder is B.B.B., with an address at ***ADDRESS.1, with an email address ***EMAIL.1 and phone number ***PHONE.1; and that the contact person for administrative, technical, and billing matters is C.C.C., residing at ***ADDRESS.2.

FIFTH: On 03/10/2022, information was requested from the entity Orange Espagne, S.A.U. regarding the ownership of the line ***PHONE.1. According to this entity's report on 19/10/2022, the line belongs to D.D.D., residing at ***ADDRESS.3.

SIXTH: In the context of the preliminary investigation proceedings, on 21/10/2022, the AEPD issued a “Agreement for the adoption of a provisional measure” ordering D.D.D. to remove the content subject to the complaint embedded on the website “***URL.1”, accessible through the URL “***URL.2” (video about “***LABEL.1” from the user “***USER.2”).

SEVENTH: Through requests from the AEPD Inspection Services dated 03/10, 17/11, and 21/11/2022, information was requested from the responsible parties of “Wespec”, hosting and domain provider, regarding the ownership of the email address ***EMAIL.1, identifying data and contacts of the domain “***URL.1” and the ownership and billing address of this domain. This entity responded on 25/11/2022 with the following:

- The identifying and contact data of the holder of the domain “pacot.es” registered in their systems:

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- Name: B.B.B.

- Surnames: B.B.B.

- Company: “***COMPANY.1”

- Email: ***EMAIL.2

- Postal address: ***ADDRESS.1

- Phone: ***PHONE.1

According to the mentioned entity, the above data was provided by “E.E.E.”.

- Holder and billing address of the domain “***URL.1”:

- Name: E.E.E.

- Surnames: E.E.E.

- Company: ***COMPANY.2

- Email: ***EMAIL.3

- Postal address: ***ADDRESS.4

- Phone: ***PHONE.2

EIGHTH: On 07/12/2022, E.E.E. was requested to remove the content published at the URL “***URL.2” and information about the entity managing the website “***URL.1”.

A response was received on 21/12/2022, indicating that the <<“thread” on the platform with the URL:

***URL.2) has been deleted (understood as the “thread” the initial message and all its responses) on the same day the letter was received (21/12/2022) at 13:15 (GMT)>>.

It states that the website only retains the strictly necessary information for the proper functioning of the website, that it does not store information, personal data, or photographs of individuals, registered or third parties, and that the possibility of uploading such files to the server is prohibited.

Regarding the photographs and videos subject to the proceedings, it reported that they come from another website (***URL.3) and that it is the users of “***URL.1” who have placed links to that content. If the content of those links is removed at the source, it no longer appears on “***URL.1”.

NINTH: On 11/01/2023, the Inspection Services verified that the content accessible through the URL “***URL.2” had been removed. On the same date, it was verified that the page “pacot.es” was not available.

TENTH: On 16/01/2023, information was requested from E.E.E. regarding the IP address from which the user “***USER.2” published the claimed content on 03/09/2022, at 13:39 and 19:13 hours, as well as the identifying registration data of this profile, among others.

On 28/01/2023, a response was received providing the identifying registration data of the profile: the IP address ***IP.1 and the email address ***EMAIL.3; and it informs that it does not record the IP address of each individual message,

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but rather the last one accessed by the user.

Subsequently, the same person was asked for the details of the date and time recorded in their systems regarding the assignment of the IP address previously reported. In the response letter dated 13/02/2023, E.E.E. communicated that it has decided to close the website “pacot.es” and provided the following details about the requested information:

. The IP address ***IP.1 assigned to the profile “***USUARIO.2” corresponds to the date 28/01/2023, at 16:27:43 (Spain Time).

. The IP address of “***USUARIO.2” on 13/02/2023, at 01:48:22 (Spain Time) was ***IP.2.

FIRST: In response to the request made by the Inspection Services, Telefónica de España, S.A.U. provided this Agency, on 01/03/2023, with the identifying data and address of the holders of the assigned IP addresses indicated, during the specified periods:

. On the date of 28/01/2023, between 16:00:00 and 17:00:00 hours, the holder of the IP ***IP.1 is F.F.F., with NIF ***NIF.1 and address at ***DIRECCIÓN.5.

. On the date of 13/02/2023, between 01:00:00 and 02:00:00 hours, the holder of the IP ***IP.2 is G.G.G., with NIF ***NIF.2 and address at street ***DIRECCIÓN.6.

TWELFTH: On 09/03/2023, identifying data (name, surname, and NIF) and address of the person with the username “***USUARIO.2” on the website “***URL.1” who used their internet connection on 28/01/2023, between 16:00h and 17:00 hours, and on 13/02/2023, between 01:00h and 02:00 hours, respectively, were requested from F.F.F. and G.G.G.

Although the respective requests were notified on 03/04/2023 and 24/03/2023, no written response has been received by this Agency.

THIRTEENTH: On 30/11/2023, identifying data (name, surname, and NIF) and address of the person with the username “***USUARIO.2” on the website “***URL.1” who used their internet connection on 28/01/2023, between 16:00h and 17:00 hours, and on 13/02/2023, between 01:00h and 02:00 hours, respectively, were requested from F.F.F. and G.G.G.

Regarding G.G.G., she received the aforementioned request by postal mail on 11/12/2023, requesting this information, and on 02/01/2024 this Agency received a response indicating the following:

“We request information about the identity of the person who connected to the page ‘***URL.1’ with the username ‘***USUARIO.2’ on 28-01-2023 from 16 to 17 h and on 13-02-23 from 01 to 02. We do not know the identity of that person, we do not know if our wifi network has been hacked, we can only say that it was not from this address nor by any family member.”

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In relation to F.F.F., on 15/02/2024 a response was received indicating that “he denies his participation in the events that have initiated this sanctioning procedure and does not know the identity of the person who may be behind the username “***USUARIO.2” or “***USUARIO.2”.

He also has no knowledge of whether that user connected to the page “***URL.1” on the days 28-01-2023 and 13-02-2023, and whether he could have done so by fraudulently accessing his WIFI network.

Therefore, neither he nor anyone in his family environment has been involved in the events attributed to him and thus he does not deserve the sanctioning reproach that is demanded of him.”

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

The physical image and voice of a person, according to Article 4.1 of the GDPR, are personal data and their protection is therefore the subject of this Regulation. Article 4.2 of the GDPR defines the concept of “processing” of personal data.

It is therefore pertinent to analyze whether the processing of personal data (image and voice of the complainant) carried out by the defendant is in accordance with the provisions of the GDPR.

III

In this case, the dissemination of a viral video following its publication on 02/09/2022 in digital newspapers and social networks is reported.

Regarding the claimed publication on the website “***URL.1”, this Agency on 11/01/2023 has verified that in compliance with the precautionary measure, the claimed content has been removed.

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Furthermore, on 13/02/2023, this Agency was informed and it is hereby confirmed that the website has been closed. Despite repeated requests, it has not been possible to ascertain who used the website “***URL.1” to publish the video that is the subject of the present sanctioning procedure.

IV

In the present case, a complaint was filed against several social media users for the dissemination of a video in which the image and voice of the complainant are shown, or of photographs taken from said video, along with comments that, in some cases, referred to their name. The complaints were also directed against the responsible parties and users of various websites, where the video in question was also embedded. Among these was the website “***URL.1”, where a user identified as “***USUARIO.2” published the video in question on 03/09/2022, accessible at the URL “***URL.2”, taken from the Twitter user “***USUARIO.1”.

On the same date of 03/09/2022, other users of "pacot.es" made comments in the thread generated by the user "****USUARIO.2" with the title "****RÓTULO.1", including the video itself or some image taken from it. To identify the person acting under the usernames and determine the authorship of the claimed facts, the Inspection Services of the AEPD requested the responsible party of "****URL.1" information about several users of the website, including the creator of the thread "****USUARIO.2", specifically the IP address from which the claimed content was published on 03/09/2022, at the corresponding time for each of them, as well as the identifying registration data of those profiles. The three users referred to in the information request had participated in the same thread related to the video subject to the proceedings.

In the response received, the responsible party of the aforementioned website informed that the IP address of each individual message is not recorded, but the last access made by the user in question is; and that no personal data is stored, except for that IP address and an email address. For the three users consulted, an IP address corresponding to the date of 28/01/2023 (date of the response) and an email address were provided.

Subsequently, the same responsible party of the website was requested to provide the details of the date and time recorded in their systems corresponding to the assignment of the reported IP addresses. In a new response letter, dated 13/02/2023, the assigned IP addresses for the consulted users were provided, corresponding to the day 28/01/2023, at 16:27:43 (Spain time), and to the day 13/02/2023, at 01:48:22 (Spain time). In relation to the claimed party (user "****USUARIO.2"), the following details were provided:

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. The IP address ***IP.1 assigned to the profile "****USUARIO.2" corresponds to the date 28/01/2023, at 16:27:43 (Spain Time).

. The IP address of "****USUARIO.2" on the date 13/02/2023, at 01:48:22 (Spain Time) was ***IP.2.

Based on this data, in response to the request made by the Inspection Services, Telefónica de España, S.A.U. provided the AEPD with the identifying data and address of the holders of the IP address assignments indicated, during the specified periods, it should be noted that in relation to the user "****USUARIO.2" a different person was indicated, with a different address, for each of the IP addresses and dates reported by the website administrator:

. On the date of 28/01/2023, between 16:00:00 and 17:00:00 hours, the holder of the IP ***IP.1 is F.F.F., with NIF ***NIF.1 and address at ***DIRECCIÓN.5.

. On the date of 13/02/2023, between 01:00:00 and 02:00:00 hours, the holder of the IP ***IP.2 is G.G.G., with NIF ***NIF.2 and address at street ***DIRECCIÓN.6.

Thus, the result of these verifications does not allow us to ensure that all accesses made to the website with the username "****USUARIO.2" were indeed carried out by the claimed party.

It is also noteworthy that Telefónica de España, S.A.U. provided different identities for each of the IP addresses associated by the website administrator "****URL.1" to another user, on the dates mentioned, with one person accessing with that username on 28/01/2023 and another different person accessing the website on 13/02/2023, also with the same name of that other user, both with different addresses.

Only in the case of the third user consulted did the identity of the person reported by the aforementioned operator coincide for the two indicated dates.

Given the result obtained, the information about IP addresses assigned to these users cannot be treated as reliable.

It is important to highlight, moreover, that the IP addresses provided by the administrator of "****URL.1" do not correspond to the moment when the events took place, that is, those IP addresses were not the ones assigned to the users who participated in the forum, in the thread created by "****USUARIO.2", on

the date 03/09/2023.

The request for information made to the administrator of “***URL.1” requested the IP address from which these users published the claimed content, but the website administrator reported that the IP address of each individual message is not recorded and that only the IP address of the last access is retained.

Therefore, it has not been possible to ascertain whether under the username “***USUARIO.2”, on that date in September 2022, G.G.G., the claimed party, or an unknown third party acted, as the specific IP address assigned at that exact moment was not available, which would have offered some opportunity to identify the specific individuals who participated in the post related to the claimant under the verified usernames.

Furthermore, it should be noted that, according to the checks highlighted by the Inspection Services of this AEPD, the website was not available on 11/01/2023, a date prior to the accesses reported by the website administrator, which supposedly took place on 28/01 and 13/02/2023.

Therefore, after a thorough study of the documents in this file, there is evidence of at least two possible individuals who could have accessed under the username “***USUARIO.2” the website “***URL.1”, G.G.G., and F.F.F., the latter being the claimed party in this sanctioning procedure.

Evidence was requested from both, with G.G.G. responding that no one in their family has used the website “***URL.1”, with the username “***USUARIO.2” on the page “***URL.1”, on 28/01/2023 from 16:00 to 17:00 hours and on 13/02/2023 during the time period from 01:00 to 02:00 hours.

They also state that they do not know the identity of the person who may have connected and are unaware if someone has hacked their wifi network.

For their part, F.F.F., the claimed party, denies their involvement in the events for which this sanctioning procedure has been initiated and claims to be unaware of the identity of the person who may be behind the username “***USUARIO.2” or “***USUARIO.2”.

Consequently, it is appropriate to conclude that there is no certainty regarding the authorship of the events analyzed in the contested resolution, supposedly committed by the claimed party under the username “***USUARIO.2”, such that there is no factual basis to attribute a violation in the area of data protection nor to sanction them for the same, proceeding to archive the proceedings.

It is noted that the website “***URL.1” was closed by its administrator and that this complicates the ability of this AEPD to carry out further verifications.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings, followed against F.F.F., with NIF ***NIF.1, for an alleged violation of Article 6 of the GDPR.

SECOND: TO NOTIFY this resolution to F.F.F., with NIF ***NIF.1.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of the...

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Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, allow interested parties to optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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